Joe Esparza, Chairman and Commissioner
Representing Employers

Alberto Treviño III, Commissioner
Representing Labor

Brent Connett, Commissioner
Representing the Public

Steve Pier, Executive Director

# Request for Proposal (RFP)

# For

# 2027 Apprenticeship Conference

# Solicitation No. 3202700013

**Date of Release: June 15, 2026**

**Responses Due: July 20, 2026, by 10:00 a.m. Central Time**

971/30 Hotel and Motel Accommodations, Including Lodges, Resorts, Bed/Breakfast Inns, etc., Rental or Lease
971/65 Room Rental or Lease for Conferences, Seminars, etc.

**Sole Point of Contact for this RFP**

Gaye Smith, CTCD, CTCM

Procurement Lead

Texas Workforce Commission Procurement Portal

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# DEFINITIONS

As used in this Solicitation, unless a different definition is specified or the context clearly indicates otherwise, the following terms have the meanings assigned below:

Table 1: Definitions

| Term/Acronym | Definition |
|---|---|
| Addendum or Addenda or Amended Solicitation | A written addition, change, or supplement to this Solicitation that is posted to the ESBD and TWC Procurement Portal and issued prior to the response due date. |
| BAFO | Best and Final Offer. |
| Business Day | The day and hours (Monday through Friday, 7 a.m. to 6:00 p.m. Local Time) in which TWC is open for business.<br>TWC is closed for business on the scheduled holidays indicated by the State Auditor's Office available at https://hr.sao.texas.gov/holidays/.<br>The terms "Working Day" and "Business Day" may be used interchangeably. All uncapitalized references to "day" shall mean calendar day. |
| Competitive Range | Consists of the Responses that have a reasonable chance of being selected for award based on the evaluation criteria and the best value criteria as stated in this Solicitation. |
| Contract | Means the written agreement entered into by TWC and Successful Respondent, which will incorporate the contents of this Solicitation and the Successful Respondent's Response, except as may be provided in the Contract and any amendments thereto. |

| Term/Acronym | Definition |
|---|---|
| Contract Term | Means the definite period of time that the Contract will remain in effect, including options for renewal, extension, or termination. |
| CTCD | Certified Texas Contract Developer. |
| CTCM | Certified Texas Contract Manager. |
| ESBD | The Electronic State Business Daily. An online platform administered by the Statewide Procurement Division (SPD) of the Comptroller of Public Accounts (CPA). The ESBD may be accessed as http://www.txsmartbuy.com/esbd. |
| Euna | TWC Procurement Portal" means the online platform used by TWC for publishing solicitations informing Respondents of procurement opportunities and response requirements and providing public notice of contract awards. |
| Final Written Response Score | Refers to the final scoring of the Solicitation based on the Scoring Matrix published in the Solicitation. |
| Fiscal Year (FY) | Texas State Fiscal Year, September 1 through August 31. |
| Local Time | Central Time (CT) as is then prevailing in Austin, Texas. |
| NIGP | National Institute of Governmental Purchasing |
| NIST | National Institute of Standards and Technology |

| Term/Acronym | Definition |
|---|---|
| Offered Option | Options that are not requested in a response to this Solicitation but may be identified by a Respondent and included in its Response. A Respondent is not obligated to include an Offered Option in its Response. This is an opportunity for Respondents to offer options that TWC may not have been aware of at the time this Solicitation was written. TWC makes no commitment to quantity or timing of acquisition of Offered Options and Offered Options are not considered during evaluation of Responses. |
| PS | Purchasing Services, a division within TWC. |
| PO | Purchase Order. |
| POA&M | Plan of Action and Milestones. |
| POCN | Purchase Order Change Notice. |
| Proposal | a written offer to contract with the State, submitted in response to this Solicitation. |
| Remedies or Sanctions | monetary recoupment, payment hold, imposition of remedies or damages, exclusion, debarment, suspension, or revocation. |
| Respondent | The individual or entity that submits a Response to this Solicitation. The term includes anyone acting on behalf of the individual or entity that submits a Response, such as an agent, employee, and representative. Also referred to a "Vendor." |
| Response | A Respondent's response to this Solicitation. |

| Term/Acronym | Definition |
|---|---|
| RFP | Request for Proposal. A formal solicitation document issued by TWC to the vendor community requesting a response for goods or services. (This document.) |
| Solicitation | This RFP, including all exhibits, attachments, forms, and Addenda, if any. May include Requests for Revised Proposals (RFRP) or Best and Final Offer (BAFO) RFPs, if issued. |
| State | The State of Texas and its instrumentalities, including TWC, its officers, employees, or authorized agents, and any other state agencies. |
| Subcontractor | Any entity(ies) or person(s) providing goods or services under the Contract on Respondent's behalf, whether or not the entity(ies) or person(s) has/have a written agreement with the Respondent. The term does not include a state agency. The term includes an officer or employee of a state agency when the officer or employee contracts with a vendor in a private capacity. |
| Successful Respondent | The Respondent with whom the TWC executes a Contract to provide the goods and/or services that this Solicitation requires. |
| Total Score | Means the Final Written Response Score that includes revised points for additional evaluation activities if any, as outlined by this Solicitation. |
| TWC | Texas Workforce Commission. |

| Term/Acronym | Definition |
|---|---|
| VPTS | Vendor Performance Tracking System, as described under Texas Government Code § 2262.055 and 34 TAC § 20.115. Reporting requirements and vendor performance factors considered in VPTS are described in Texas Government Code § 2155.089 and 34 TAC § 20.509. The VPTS is available at: https://www.txsmartbuy.gov/vpts. |

# ARTICLE VI PURPOSE

The Texas Workforce Commission (TWC) is seeking proposals to provide Conference Services in one or more of the following locations:

1. Arlington, Texas;
2. Corpus Christi, Texas;
3. Conroe, Texas;
4. Dallas, Texas;
5. Denton, Texas;
6. Fort Worth, Texas;
7. Galveston, Texas;
8. Houston, Texas;
9. San Antonio, Texas; or
10. The Woodlands, Texas.

The Texas Workforce Commission (TWC) Procurement Services (PS) section will administer the procurement process for this Solicitation, which includes Solicitation publication, handling of communications from Respondents, as well as managing the receipt of Responses for review and evaluation.

Information regarding TWC and its programs is available online and can currently be accessed at www.twc.texas.gov.

TWC is procuring Conference Services, including meeting space, food/beverage services and sleeping rooms for the 2027 Apprenticeship Texas Conference (hereinafter referred to as the "Conference").

The Conference will be held for two (2) half days and one (1) full day in the Arlington, Corpus Christi, Conroe, Dallas, Denton, Fort Worth, Galveston, Houston, San Antonio or The Woodlands, Texas areas.

# ARTICLE VII SCOPE OF WORK

## 2.1 OVERVIEW

TWC's Office of Apprenticeship supports apprenticeship programs that help employers build their current and future talent and workers progress in their careers and move into better-paying jobs. These programs support the creation and expansion of apprenticeships throughout the state.

TWC has received United States Department of Labor (DOL) apprenticeship expansion funding with a period of performance through June 30, 2028.

The Apprenticeship Texas Conference provides information to all the workforce partners that include, but are not limited to; Texas Higher Education Coordinating Board, Texas Education Agency, Community/Technical College, service centers, independent school districts, workforce boards, employers, etc.

Respondent must affirm its intent to comply with the requirements as stated in **Article II, Scope of Work**, and affirm that it will continue to comply with these requirements during the term of the Contract issued as a result of this Solicitation, if any.

## 2.2 SPECIFICATIONS

a. Requirements for Conference Services that contain the words:

   1. "must" or "shall" must be provided as specified without alteration, modification or exception;

2. "may" or "can" allow Respondents to offer alternatives to the way services are provided.

b. The Successful Respondent must provide conference event services in accordance with the requirements as stated in this RFP and all attachments and forms.

## 2.3 Conference Dates and Times

a. The Successful Respondent must have the capability to hold the conference as listed below as a two (2) half day and one (1) full day conference with setup on Monday and Tuesday, and the conference starting on Wednesday afternoon through Friday morning.

b. TWC's preferred dates for the Conference are September 21, 2027, through September 24, 2027.

c. TWC's alternate preferred dates for the Conference are September 28, 2027, through October 1, 2027.

d. The Successful Respondent must have availability for TWC's preferred dates above, or TWC's alternate preferred dates above, or an alternate date that is agreed upon by both parties with Monday through Friday dates along with the required times as listed in Section 2.2.2 Conference Schedule below.

The Successful Respondent(s) must have the capability to hold two-day conference(s), avoiding major holidays, as detailed below.

## 2.4 Conference Schedule

Times needed for the two (2) half-days and one (1) full day conference, including setup are:

Table 2: Conference Schedule

| Day | Start Time | End Time | Function Name | Set Up | Expected Attendance |
|---|---|---|---|---|---|
| Mon | 1:00 PM | 12:00 AM | Staff Work Room | Conference | 20 |
| Tues | 6:00 AM | 12:00 AM | Staff Work Room | Conference | 20 |
| Tues | 1:00 PM | 12:00 AM | Breakout Room Set | Classroom | 125 |
| Tues | 1:00 PM | 12:00 AM | Breakout Room Set | Classroom | 125 |
| Tues | 1:00 PM | 12:00 AM | Breakout Room Set | Classroom | 125 |
| Tues | 1:00 PM | 12:00 AM | Breakout Room Set | Classroom | 125 |
| Tues | 1:00 PM | 12:00 AM | Pre-function Set | Registration & Exhibitors | 20 tables |
| Wed | 6:00 AM | 12:00 AM | Staff Work Room | Conference | 20 |
| Wed | 6:00 AM | 12:00 AM | General Session Set | Rounds | 350 |
| Wed | 6:00 AM | 12:00 AM | Breakout Room | Classroom | 125 |
| Wed | 6:00 AM | 12:00 AM | Breakout Room | Classroom | 125 |
| Wed | 6:00 AM | 12:00 AM | Breakout Room | Classroom | 125 |
| Wed | 6:00 AM | 12:00 AM | Breakout Room | Classroom | 125 |
| Wed | 6:00 AM | 12:00 AM | Pre-function | Registration & Exhibitors | 20 tables |
| Thurs | 6:00 AM | 12:00 AM | Staff Work Room | Conference | 20 |
| Thurs | 6:00 AM | 12:00 AM | General Session | Rounds | 350 |
| Thurs | 6:00 AM | 12:00 AM | Breakout Room | Classroom | 125 |
| Thurs | 6:00 AM | 12:00 AM | Breakout Room | Classroom | 125 |
| Thurs | 6:00 AM | 12:00 AM | Breakout Room | Classroom | 125 |
| Thurs | 6:00 AM | 12:00 AM | Breakout Room | Classroom | 125 |
| Thurs | 6:00 AM | 12:00 AM | Pre-function | Registration & Exhibitors | 20 tables |
| Fri | 6:00 AM | 12:00 AM | Staff Work Room | Conference | 20 |
| Fri | 6:00 AM | 1:00 PM | General Session | Rounds | 350 |
| Fri | 6:00 AM | 1:00 PM | Breakout Room | Classroom | 125 |
| Fri | 6:00 AM | 1:00 PM | Breakout Room | Classroom | 125 |
| Fri | 6:00 AM | 1:00 PM | Breakout Room | Classroom | 125 |
| Fri | 6:00 AM | 1:00 PM | Breakout Room | Classroom | 125 |
| Fri | 6:00 AM | 1:00 PM | Pre-function | Registration & Exhibitors | 20 tables |

## 2.5 Conference/Meeting Space Requirements

The SUCCESSFUL RESPONDENT MUST PROVIDE THE FOLLOWING EVENT SPACE REQUIREMENTS:

a. One (1) General Session room with meeting room capacity for up to three hundred and fifty (350) people in crescent rounds of eight (8) seats per table, with linens and chairs.

b. Four (4) breakout rooms with meeting room capacity for up to one hundred twenty-five (125) people in each classroom.

c. Linen for all meeting room tables unless tables are designed to be linen-less (If proposing linen-less tables, Respondent must include sample pictures of linen-less tables with their Response).

d. Carpeted event space.

e. No columns obstructing seated participants from viewing the stage.

f. Sixteen foot (16') X twenty-four foot (24') X twenty-four inch (24") stage(s)/riser(s) that are Americans with Disability Act (ADA) Compliant.

g. Standing podium in each meeting room.

h. Room dimensions including the ceiling height and a diagram of the intended space(s) for use by TWC along with a potential set-up diagram of all spaces.

### 2.6 Registration and Exhibitor Area

THE SUCCESSFUL RESPONDENT MUST PROVIDE THE FOLLOWING REGISTRATION AND EXHIBITOR AREA REQUIREMENTS:

a. The foyer must be able to hold four (4) skirted six-foot (6') tables for registration with two (2) chairs per table. The tables provided must be near an outlet or a power strip.

b. The foyer must also hold eighteen (18) skirted six-foot (6') tables for exhibitors along with all catering, including snacks. Each table must have two (2) chairs.

c. If the Successful Respondent's foyer is not able to support eighteen (18) tables for exhibitors, then the exhibitor area must be adjacent to the main conference space or within the main conference space. This space must allow for free movement of attendees with no restrictions that could potentially cause a safety issue between the catering and exhibitors' space.

d. A diagram or map for a separate exhibitor area, if applicable. The diagram or map must show how the main conference space relates to the exhibitor and catering space.

e. Access to wired internet connection that is plug and play and does not require a portal for authentication for the Conference registration desk with a minimum speed of three (3) megabits per second (Mbps).

## 2.7 Sleeping Rooms

a. The Successful Respondent must provide sleeping rooms on the premises preferably close to the conference meeting rooms.

b. Rooms must be made available at the prevailing Government per diem rate or lower, as established by the U.S. General Services Administration.

c. The attendee sleeping rooms will be reserved via a web link and paid for by individuals. Staff and suites block will be a rooming list direct billed.

d. The Successful Respondent must provide the following sleeping rooms as noted below:

Table 3: Sleeping Rooms

| Day | Monday | Tuesday | Wednesday | Thursday | Total Nights |
|---|---|---|---|---|---|
| Staff | 20 | 20 | 20 | 20 | |
| Attendees | | | 200 | 200 | |
| Suites | | | 6 | 6 | |
| Total Per Night | 20 | 20 | 226 | 226 | 488 |

## 2.8 Catering

The Successful Respondent must provide catering with menu options for the following functions listed below:

Table 4: Catering

| Day | Start Time | End Time | Function Name | Meal Type | Attendance |
|---|---|---|---|---|---|
| Wed | 1:00 PM | 5:00 PM | Break | Beverage Service | 150 |
| Wed | 3:00 PM | 3:30 PM | PM Break | PM Snack | 150 |
| Thurs | 7:30 AM | 4:30 AM | Break | Beverage Service | 350 |
| Thurs | 7:30 AM | 8:30 AM | Breakfast | Buffet | 350 |
| Thurs | 9:00 AM | 9:30 AM | AM Break | AM Snacks | 350 |
| Thurs | 11:30 AM | 1:00 PM | Lunch | Buffet | 350 |
| Thurs | 3:00 PM | 3:30 PM | PM Break | PM Snacks | 350 |
| Friday | 7:30 AM | 1:00 PM | Conference | Beverage Service | 350 |
| Friday | 7:30 AM | 8:30 AM | Breakfast | Buffet | 350 |

## 2.9 Concessions

a. TWC encourages the Respondent to propose and include complimentary options offered with the required meeting space, room blocks and food and beverage package.

b. Concessions may include, but are not limited to the following:

   1. Complimentary parking for TWC staff hosting the Conference and discounted parking for Conference attendees;

2. Five (5) complimentary sleeping rooms during site visit for TWC's planning staff;
3. Cumulative complimentary 1:40 sleeping room nights;
4. Six (6) suites at the group rate;
5. Twenty percent (20%) discount on published menu prices;
6. Complimentary wireless internet dedicated for attendees only in the Conference area; and
7. Other complimentary items for TWC's consideration.

## 2.10 Audio Visual

a. TWC will contract with audio-visual company that is either partnered with the hotel/venue or external 3rd party company, during the planning stages for the conference at a later time.

b. Please provide costs for the below based on contract with hotel partner audio-visual provider or outside audio-visual provider. Please include even if no cost due to TWC choosing partner audio-visual company.

   1. AV Liaison fees;
   2. Electricity (Standard electric usage 115v outlets);
   3. Internet (Hard Wired Ethernet);
   4. Internet for all attendees (Wireless);

c. The audio-visual vendor chosen by TWC is to be granted access to the event space as necessary.

# ARTICLE VIII SOLICITATION PROCESS

## 3.1 AUTHORITY

TWC is soliciting the goods and/or services stated in this Solicitation under the authority of Texas Government Code § 2156.001

All official communication (including, but not limited to, Schedule of Event changes, Addenda, and Questions and Answer documents) will be posted to the Electronic State Business Daily (ESBD). TWC has no responsibility to communicate personally with each potential Respondent for this procurement. Each interested party is solely responsible for checking the ESBD for official TWC communication regarding this procurement.

## 3.2 SCHEDULE OF EVENTS

The dates in this Schedule of Events are tentative, and TWC reserves the right to modify these dates at any time. At the sole discretion of TWC, events listed in the Schedule of Events are subject to changes and cancellation. Scheduling changes or cancellations made prior to the Deadline for Submission of Responses will be published as an Addendum posted to the ESBD.

Table 5: Schedule of Events

| Event | Date and Time |
|---|---|
| Solicitation Published/Posted to TWC Procurement Portal and ESBD | JUNE 15, 2026 |
| Deadline for Submitting Questions or Requests for Clarification | JUNE 22, 2026, at 5:00 PM Central Time |

| Event | Date and Time |
|---|---|
| **Deadline for Submission of Response**<br><br>**NOTE**: Responses must be **RECEIVED** by TWC by the deadline. | JULY 20, 2026, at 10:00 AM Central Time |
| Expected Contract Award | SEPTEMBER 2026 |

Respondent must submit its Response to TWC in accordance with the due date and time as indicated in this Table 5: Schedule of Events or as changed via an Addendum posted to the ESBD and TWC Procurement Portal.

### 3.3 Contract Documents

The Contract(s) resulting from this solicitation may consist of the provisions in this solicitation (including its attachments, forms, exhibits, and any Addenda); the Successful Respondent's Response, any TWC Request for Revised Response, the Successful Respondent's Response to the Request for Revised Response, and TWC's Purchase Order (PO). No prior agreement or understanding, oral or otherwise, of the parties or their agents will be valid or enforceable unless embodied in these documents. In the event of a conflict between the provisions of these documents, the documents are given the following order of priority: (1) TWC PO; (2) most recent Request for Revised Response (if any); (3) Successful Respondent's Response to the Request for Revised Response or Best and Final Offer (BAFO), if any; (4) Request for Proposal; and (5) Successful Respondent's Response.

TWC may elect to have the Contract(s) resulting from this Solicitation consist of a single document. This document will contain all rights and duties of the parties extracted from the relevant terms and conditions of the Solicitation (including its attachments, forms, exhibits, and any Addenda), the Successful Respondent's Response, the Request for Revised Response or BAFO, if any, and Successful Respondent's Response to the Request for Revised Response or BAFO, if any. Prior to award, TWC will prepare the Contract for review by the Successful Respondent.

Discussions may be had concerning possible revisions to the draft Contract to clarify points, further define Contract text, or to correct minor technicalities. These discussions are to be finalized and all requests for revisions resolved within ten (10) Business Days after the Successful Respondent receives the draft Contract for review or such additional time that may be agreed to by TWC. If discussions are not finalized within such time frame, the Response may be rejected, and discussions may be initiated with the next highest scoring Respondent.

## 3.4 Attachments and Forms

Table 6: Attachments and Forms

| Attachment/Form | Title |
|---|---|
| Attachment 1 | TWC Hotel Terms and Conditions |
| Attachment 2 | Insurance Requirements |
| Form 1 | Execution of Response |
| Form 2 | Cost Response |
| Form 3 | References |
| Form 4 | Questions and Answers |
| Form 5 | Financial Questionnaire |

| Attachment/Form | Title |
|---|---|
| Form 1020 | Substitute W-9 and Direct Deposit with Instructions |

### 3.5 Sole Point of Contact

All requests, questions, or other communication about this Solicitation must be made in writing to PS, addressed to the person listed below (Sole Point of Contact) with the Solicitation number in the subject line.

GAYE SMITH, CTCD, CTCM

Procurement Lead

TEXAS WORKFORCE COMMISSION PROCUREMENT PORTAL

### 3.5.1 Prohibited Communication

Except as provided in Section 3.5 Sole Point of Contact all communication with TWC regarding this Solicitation is prohibited. Unless allowable, TWC, its representative(s), and partners will not answer any questions or otherwise discuss the contents of this Solicitation with any potential Respondent or its representative(s). Attempts to ask questions through any means other than as provide for in this Solicitation (including but not limited to by phone or in person) will not be allowed or recognized as valid. Respondent shall rely only on written statements issued by or through TWC designated staff as provided by Section 3.5 Sole Point of Contact.

**Failure to comply with these restrictions may result in disqualification of Respondent's Response.** These restrictions do not preclude discussions between affected parties for the purposes of conducting business unrelated to this Solicitation.

### 3.5.2 Exceptions to the Sole Point of Contact

Where it is expressly directed by the Sole Point of Contact that another designated TWC representative may speak to the Respondent, such as during Contract negotiations. A Respondent is required to ensure that communications have been authorized by the Sole Point of Contact before engaging in any such communication. Failure to comply with this requirement may result in the disqualification of a Respondent’s Response.

## 3.6 Questions/Requests for Clarification

TWC will allow written questions and requests for clarification regarding this Solicitation. Questions must be submitted through the TWC Procurement Portal to the Sole Point of Contact listed in Section 3.5 Sole Point of Contact by the deadline established in Section 3.2 Schedule of

Events. using **Form 4 - Questions and Answers**. Include the Solicitation section and page number to which each question applies.

TWC will post all questions and answers and, if appropriate, an Amended Solicitation to the ESBD and TWC Procurement Portal. Responses to questions or other written requests for clarification will not be provided individually to prospective Respondents submitting questions.

TWC reserves the right to amend answers previously posted. Amended answers will be posted to the ESBD and TWC Procurement Portal. It is the Respondent's responsibility to check the ESBD and TWC Procurement Portal. TWC also reserves the right to provide a single consolidated response to all similar questions at the agency's sole discretion.

Questions or requests for clarification received after the deadline in Section 3.2 Schedule of Events may be reviewed by TWC, but may not be answered. Only TWC's written answers posted on ESBD and TWC Procurement Portal, in accordance with this section, are binding.

### 3.7 Addenda

Should an addition or correction become necessary after the Solicitation is issued, an Addendum relating the necessary information will be posted to the ESBD and TWC Procurement Portal. Respondents are responsible for periodically checking the ESBD and TWC Procurement Portal for addenda or additional information. **Respondents are required to acknowledge the Addenda by returning the signed Acknowledgment of Addenda with the Response. Failure to do so does not absolve a Respondent from the requirements contained within any Addenda of this Solicitation.**

# ARTICLE IX RESPONSE SUBMISSION INSTRUCTIONS

## 4.1 DEADLINE

Responses must be received by PS as prescribed no later than the date and time specified in Section 3.2 Schedule of Events.

Responses received after the deadline specified in Section 3.2 Schedule of Events will be rejected and will not be evaluated or considered for Contract award. TWC is not responsible for Responses submitted late, illegible, incomplete, or otherwise considered disqualified due to failure of electronic equipment or operator error.

## 4.2 GENERAL INFORMATION

Respondents must fully and completely address all requirements described in this Solicitation. Incomplete or partial Responses will not be considered. The Respondent must provide all information that the Respondent believes would be helpful to TWC in evaluating the Respondent's ability to fulfill the Solicitation requirements. Respondents shall prepare a Response that clearly and concisely represents its qualifications and capabilities.

## 4.3 RESPONSE FORMAT

The Response to this Solicitation must:

a. Be responsive to all Solicitation requirements;

b. Be in the 8 1/2" by 11" paper layout;

c. Be clearly legible; and

d. Be presented using font type Verdana or Arial, font size 12-point, with one (1) inch margins and 1.25 line spacing; the sole 12-point

font size exception is no less than size 10 point for tables, graphs, and appendices.

### 4.4 Discrepancies

In the event of any discrepancies or variations between copies, TWC is under no obligation to resolve the inconsistencies and may make its scoring and selection decision, accordingly, including the decision to potentially disqualify a Response. If Respondent fails to designate an "Original" Response as required by Section 4.5 Submission Method, TWC in its sole discretion, will determine the version to be used as the original or may disqualify the Response. If the Respondent submits a redacted Response as the "Original," TWC will disqualify the Response, and it will not be evaluated.

TWC will not accept submissions after the Response due date in Section 3.2 Schedule of Events to remedy discrepancies or variations in Response submissions.

### 4.5 Submission Method

TWC has implemented the eProcurement platform referred to as the TWC Procurement Portal. Respondent must upload all documentation indicated to the TWC PROCUREMENT PORTAL link on the "Open Opportunities" tab.

Submissions by any other method will not be accepted.

To respond to this Solicitation, Respondents must register through the TWC Procurement Portal website. There is no charge to register.

Step-by-step instructions are available at: VENDOR REGISTRATION – PROCUREMENT

For a quick tutorial through the registration and submission process, visit: Submissions – Procurement.

Any issues with uploading must first be addressed with the TWC Procurement Portal Technical Support at the contact information included in the Procurement Information Summary and TWC Procurement Portal Instructions to Respondents document.

Respondents must contact the Sole Point of Contact prior to the deadline if there are issues with using the TWC Procurement Portal and an alternative submission method may be required. Failure to contact the Sole Point of Contact well before the deadline to make alternative arrangements will disqualify any subsequent Response submission.

In no event will TWC be responsible or liable for any delay or error in delivery. TWC is not responsible for electronic submissions that are captured, blocked, filtered, quarantined or otherwise prevented from reaching the proper destination server by any TWC anti-virus or other security software.

It is the Respondent's responsibility to appropriately mark and upload the Proposal to the TWC Procurement Portal by the specified date. Each Respondent is solely responsible for ensuring its Proposal is submitted in accordance with all Solicitation requirements and ensuring timely receipt by TWC.TWC is not responsible for electronic submissions that are captured, blocked, filtered, quarantined or otherwise prevented from reaching the proper destination server by any TWC anti-virus or other security software. To confirm receipt of all electronic submissions, Respondent should request a confirmation by e-mail.

**Hard copies received will not be accepted or reviewed**.

It is the Respondent's responsibility to appropriately mark and deliver the Response to the TWC Procurement Portal by the specified date. Each Respondent is solely responsible for ensuring its Response is submitted in accordance with all Solicitation requirements and ensuring timely receipt

by TWC. **In no event will TWC be responsible or liable for any delay or error in delivery. Response must be RECEIVED by TWC by the Response Deadline identified in Section 3.2 Schedule of Events.**

## 4.6 Required Forms and Submission Documents

Table 7: Required Forms and Submission Documents

| Document Name |
|---|
| Narrative Proposal (Section 4.7) |
| Form 1 - Execution of Response (Section 4.7.2) |
| Form 2 - Cost Response (Section 4.9) |
| Form 3 - References (Section 4.8) |
| Form 5 - Financial Questionnaire (Section 4.11) |

## 4.7 Narrative Proposal

### 4.7.1 Executive Summary

Respondent must provide an Executive Summary of their Response (excluding cost information) that asserts the Respondent is providing, in its Response, all the requirements of this Solicitation, including Article II Scope of Work. The Executive Summary must demonstrate Respondent's understanding of TWC goals and objectives for this Solicitation.

If the Respondent is providing goods and/or services beyond those specifically requested, those goods and/or services must be identified. If the Respondent is offering goods and/or services that do not meet the specific requirements of this Solicitation, but in the opinion of the Respondent are equivalent or superior to those specifically requested, any such differences must be noted in the Executive Summary. The Respondent should realize, however, that failure to provide the goods and/or services specifically requested may result in disqualification.

The Executive Summary must not exceed TWO (2) pages and should represent a full and concise summary of the contents of the Response.

### 4.7.2 Execution of Response

Respondent must complete, sign, date and return **Form 1 - Execution of Response**. By signing, Respondent agrees to provide the goods and/or services described in this Solicitation and agrees to abide by all TWC Terms and Conditions as specified in this Solicitation and in resulting Contract. A Response without the required signatures is not responsive to the Solicitation and will be disqualified.

Unsigned Responses will not be evaluated; these Responses will be kept with the procurement file and will not be returned to the Respondent.

### 4.7.3 Respondent Organization Information

Respondent must include the following information with its Response.

#### *4.7.3.1 Respondent Point of Contact*

Respondent must provide the name, address, and telephone number of Respondent's point of contact for any questions regarding the Response and, if different than the point of contact for questions about the Response, the name, address, and telephone number of Respondent's point of contact for any resulting Contract.

#### *4.7.3.2 Respondent Organization Narrative*

Respondent must provide a detailed narrative explaining why it is qualified to provide the services enumerated in Article II Scope of Work, focusing on key strengths and competitive advantages.

Respondent must describe its knowledge and experience in providing Conference Services to comparable clients of similar size and complexity to TWC, including how many years Respondent has been providing

Conference Services. The Organization Narrative must not exceed two (2) pages.

### *4.7.3.3 Organization Profile*

**NOTE:** Texas governmental entities are exempt from this requirement.

Respondent must provide an organizational profile, including:

a. Ownership structure (e.g., corporation, partnership, LLC, or sole proprietorship), including any wholly owned subsidiaries, affiliated companies, or joint ventures. (Please provide this information both in a narrative and as a graphical representation.)

    1. If Respondent is an affiliate of or has a joint venture or strategic alliance with another company, Respondent must identify the percentage of ownership of each joint venture member or affiliate and the percentage of the parent company's ownership. The entity performing the majority of the work under any resulting Contract, throughout the duration of the Contract, must be the primary Respondent.

    2. Finally, Respondent must provide its proposed operating structure for the services requested under this Solicitation and which entities (i.e., parent company, affiliate, joint venture, subcontractor) will be performing the services.

b. The year the company was founded and/or incorporated. If incorporated, please indicate the state where the company is incorporated and the date of incorporation;

c. The location of company headquarters and any field office(s) that may provide services for any resulting Contract;

d. The number of employees in the company, both locally and nationally, and the location(s) from which employees will be assigned to TWC's project; and

e. An indication of whether the company has ever been in contract with any Texas state agency. If "Yes," specify the agency name, contract term, and the scope of work for that contract.

## 4.8 References

Respondent must provide a minimum of THREE (3) references in the format set forth in **Form 3 - References** and should also provide any canceled contract reference as applicable. These references must relate to similar contracts or projects performed as described in Section 2.2 Description of Services/Scope of Work/Specifications within the last five (5) years, and it is preferable references be from state, federal, and/or local governmental entities.

### 4.8.1 Similar Contracts

Each Respondent shall provide descriptions for A MINIMUM of THREE (3) engagements of comparable complexity and sensitivity to the requirements of this Solicitation that have been conducted within the past five (5) years. The description of comparable engagements shall be detailed and cover the contracts the Respondent and any Subcontractors have had and all experience similar to this Contract that qualifies the Respondent to meet the requirements of this Contract, including, but not limited to:

a. Size of contract (including value);

b. Reason for contract termination/expiration, if contract is no longer in effect;

c. Types of services directly provided by the Respondent and whether the Respondent was the contractor or Subcontractor;

d. Term and type of contract, including effective dates; and

e. Any problems encountered.

### 4.8.2 Contract Performance

The Respondent shall state whether or not any of the following have occurred during the last five (5) years:

a. The Respondent has had a contract terminated, and, if so, shall provide full details, including the other party's name, address, and telephone number on **Form 3 - References**.

b. The Respondent has assessed any remedies, including liquidated damages or other such monetary remedies, under any existing or past contracts, and, if so, note the reason for and the amount assessed or paid for each incident.

c. The Respondent was the subject of (i) any threatened, pending, or resolved disciplinary action for substandard work and/or unethical practices; or (ii) any order, judgment or decree of any federal or state authority barring, suspending or otherwise limiting the right of the Respondent to engage in any business, practice, or activity.

d. The Respondent has been involved in any civil or criminal litigation and/or entered into any compromise agreement, settlement agreement, or resulting consent decree or judgements, if applicable, related to contract performance, the goods and/or services sought by this Solicitation, or that a reasonable person knowledgeable of the applicable industry would consider relevant to the work under the Contract. Respondents are not required to violate any

confidentiality provision but must provide information not prohibited from disclosure.

### 4.9 Cost Response

In accordance with Section 4.9 Cost Response, the Respondent shall include one file named "Cost Response" that contains the Respondent's Cost Response in the format included in **Form 2 - Cost Response**.

Cost information must be included as a separate document and presented only in the format set forth in **Form 2 - Cost Response**.

Respondent must state pricing for all goods and/or services rendered during the course of any awarded Contract, including any and all costs involved that are to be paid or reimbursed by TWC during the initial contract period and any renewal or extension periods. No reimbursement is available to the Successful Respondent beyond the amount agreed to be paid for the goods and/or services provided. Pricing agreed to in any resulting Contract shall be firm and remain constant through the life of the Contract (unless a Price Adjustment is permitted in accordance with Section 6.3 Price Adjustment).

The Cost Response provided is for the goods and/or services as specified in this Solicitation and shall include all labor, materials, tools, supplies, equipment, and personnel, including but not limited to, travel expenses, associated costs, and incidental costs necessary to provide the goods and/or services according to the minimum specifications, requirements, provisions, and Terms and Conditions set forth in this Solicitation.

### 4.10 Offered Options

TWC does not intend to limit the creativity of Respondents from bringing forward new suggestions or enhancements not described in this Solicitation. Respondents are encouraged to describe any Offered Options. Offered Options are not required and are not considered during evaluation

of Responses. TWC will not award additional options if not included in the Response.

### 4.11 Financial Soundness

The Respondent must complete **Form 5 - Financial Questionnaire** unless it is a governmental entity. Failure to include any of the items listed for the appropriate company type may result in disqualification of the Respondent's Response. If TWC learns of a failure to disclose after a Contract has been awarded to the Successful Respondent, the Contract may be terminated. In the event of such termination, the Successful Respondent shall be liable for all costs associated with the re-procurement, including any increased costs for the services originally awarded.

#### 4.11.1 Change in Financial Condition – Duty to Notify

The Response must include a certification that the Respondent will notify TWC of a change in financial condition during the Contract term and any renewal thereof. If a Respondent experiences a substantial change in its financial condition prior to the award of the Contract, or if the Successful Respondent experiences a substantial change in its financial condition during the term of the Contract or any extension thereof, TWC must be notified of the change in writing at the time the change occurs or is identified. Failure to notify TWC of such substantial change in financial condition will be sufficient grounds for rejecting the Response or terminating the Contract. For the purposes of this section, examples of a substantial change in financial condition are events such as insolvency, bankruptcy or receivership.

### 4.12 Corporate Guarantee

If the Respondent is substantially owned or controlled, in whole or in part, by one or more other legal entities, the Respondent must submit the information required under Section 4.10 Financial Soundness above for

each such entity, including the most recent financial statement for each such entity. The Respondent must also include a statement from the entity or entities with substantial ownership or control that the entity(ies) will unconditionally guarantee performance by the Respondent of each and every obligation, warranty, covenant, term, and condition of any Contract resulting from this Solicitation. If TWC determines that an entity does not have sufficient financial resources to guarantee the Respondent's performance, TWC may require the Respondent to obtain another acceptable financial instrument or resource from such entity, or to obtain an acceptable guarantee from another entity with sufficient financial resources to guarantee Respondent's performance.

TWC reserves the right to request that such entity unconditionally guarantee performance by the Respondent in each and every obligation, warranty, term, covenant, and condition of any Contract resulting from this Solicitation.

### 4.13 EXCEPTIONS

Each Respondent is highly encouraged, in lieu of including exceptions in a Response, to address all issues that might be advanced by way of exception by submitting such issues as questions or requests for clarification pursuant to Section 3.6 Questions/Requests for Clarification.

Any exception included in a Response may result in a Respondent not being awarded a Contract. If a Respondent includes exceptions in its Response, Respondent is required to use **Form 1 - Execution of Response** and provide all information requested on the form. Any exception that does not provide all required information in the format set forth in **Form 1 - Execution of Response** may be rejected without consideration.

Respondent must clearly identify the specific section and language to which it takes exception, propose specific alternative language, and describe its reasoning for requesting the exception. TWC will only consider exceptions submitted on **Form 1 - Execution of Response**.

No exception, nor any other term, condition, or provision in a Response that differs from or contradicts this Solicitation will be considered to be part of any resulting Contract unless expressly made a part of the Contract in writing by TWC.

Any exceptions or deviations by the Respondent to **Attachment 1 – TWC Hotel Terms and Conditions** may make the Response unacceptable for award without discussion. If a Respondent proposes exceptions to **Attachment 1 – TWC Hotel Terms and Conditions**, TWC may make an award without discussion to the next highest scoring Respondent with no exceptions to **Attachment 1 – TWC Hotel Terms and Conditions**.

### 4.14 Binding Offer

A Response should be responsive to the Solicitation as worded and without any assumption that any or all terms, conditions, or provisions of the Solicitation will be negotiated. Furthermore, all Responses constitute binding offers. Any Response that includes any type of disclaimer or other statement indicating that the Response, or any portion of the Response, does not constitute a binding offer may be disqualified, as determined by TWC in its sole discretion.

If a Respondent's ability to enter into a Contract is contingent upon any exception or assumption provided in accordance with Section 4.13 Exceptions, the Respondent may be disqualified from further consideration for Contract award.

### 4.15 Franchise Tax – Right to Transact Business in Texas

If applicable, the Texas franchise tax is imposed on each taxable entity formed or organized in Texas or doing business in Texas.

Respondent must be set up in the Texas franchise tax system prior to Contract award if applicable. Texas franchise tax information can be accessed at https://comptroller.texas.gov/taxes/franchise/.

### 4.16 Ambiguity, Conflict, or Discrepancy

Respondent must notify the 3.5 Sole Point of Contact of any ambiguity, conflict, discrepancy, exclusionary specification, omission, or error in the Solicitation in the manner and by the deadline described in Section 3.6 Questions/Requests for Clarification.

If Respondent fails to properly and timely notify the Sole Point of Contact (Section 3.5 Sole Point of Contact) of any ambiguity, conflict, discrepancy, exclusionary specification, omission, need for clarification, or other error in the Solicitation, Respondent:

a. Waives any claim of error or ambiguity in the Solicitation and any resulting Contract;

b. Submits a Response at its own risk;

c. May not contest the interpretation by TWC of such provision(s); and

d. Is not entitled to additional compensation, relief, or time by reason of ambiguity, conflict, discrepancy, exclusionary specification, omission, or other error or TWC's later correction.

### 4.17 Response Irrevocability

Responses submitted to the Solicitation are binding and irrevocable for one hundred eighty (180) calendar days following the solicitation closing date. This period may be extended at TWC's Procurement and Contract

Services Director's request only by a Respondent's written agreement. Upon Contract execution, prices agreed upon by the Successful Respondent(s) are an irrevocable offer for the term of the Contract and any Contract renewals or extension(s). No other costs, rates, or fees shall be payable to the Successful Respondent unless expressly agreed upon in writing by TWC.

### 4.18 Questions or Requests for Clarification

By submitting a Response, Respondent grants TWC the right to ask questions and request clarification. As part of the initial evaluation, the evaluation committee may request clarification. Clarifying questions to a Respondent are to resolve conflicting information, apparent ambiguities, or minor clerical errors within the Response.

### 4.19 Cost of Submission and Additional Evaluation Activities

TWC will not reimburse Respondents for any costs related to Response preparation or submission. Additionally, Respondents will be responsible for their own presentation equipment if invited to participate in additional evaluation activities, such as in-person discussions, clarifications, or negotiations. Failure to participate in the requested additional evaluation activities may eliminate a Respondent from further consideration.

TWC is not responsible for any costs incurred by the Respondent in preparation for any additional evaluation activities. All costs incurred by Respondent are the responsibility of Respondent.

### 4.20 TWC Rights

All submitted Responses and materials submitted by a Respondent become the property of TWC. TWC reserves the right to use any and all ideas presented in any Response to this Solicitation. Selection or rejection of any Response does not affect this right.  A Proposal becomes the

property of TWC after submission and will not be returned to the Respondent.

The rights of TWC include, but are not limited to:

a. Cancellations, Modifications, and Changes to this Solicitation is at TWC's sole discretion;

b. Suspension of the procurement process and issuance of Solicitation Addenda;

c. Rejection, in whole or in part, of any and all Responses received for this Solicitation;

d. Waiver of administrative deficiencies or minor technicalities in any of the Responses;

e. Utilization of any and all ideas presented in the Responses;

f. Directing any Respondent to submit Response modifications addressing subsequent Addenda;

g. Elimination of any requirements that are not met by all Respondents upon notice to all parties submitting a Response;

h. Making typographical corrections to Responses, with the concurrence of the Respondent;

i. Changing computational errors with the concurrence of the Respondent;

j. Requesting Respondents to clarify the Responses;

k. Requesting Respondents to submit additional information pertaining to the Response; and

l. Making an award without:

    1. Requesting clarification;

2. Allowing modification;
3. Discussing;
4. Negotiating; and/or
5. Requesting a revised response.

# ARTICLE X EVALUATION AND AWARD

TWC will award a Contract to the Respondent(s) that offers the best value to the State and is in the State's best interest as determined using the evaluation criteria described in this Article V.

Responses that meet the minimum qualifications will be submitted to the evaluation committee for review and scoring. Each member of the evaluation committee will receive a copy of each responsive Response. The evaluators will review the Responses considering the criteria listed in Section 5.5 Evaluation Criteria.

Evaluators will individually score the Responses. Oral Presentations or Site Visits may also be used to make a selection for Contract award, as outlined in this section.

## 5.1 Conformance With State Law

Responses shall be evaluated in accordance with Texas Government Code § 2155.074. TWC shall not be obligated to select the lowest priced Response but shall make an award to the Respondent that provides the best value to the State of Texas.

## 5.2 Minimum Qualifications (Pass/Fail)

A Respondent must meet the minimum qualifications listed below. Failure to meet any one of the minimum qualifications listed below may result in a disqualification of that Response.

a. Respondent must have recently been in business for a minimum of THREE (3) years, or the principals/owners must have had ownership/executive management experience within the last FIVE (5) YEARS in a previous company that provided CONFERENCE SERVICES;

b. Respondent must be financially solvent and adequately capitalized, as determined based on a review of documentation required by Section 4.11 Financial Soundness, if applicable;

c. Respondent has submitted the Response in accordance with Article IV Response Submission Instructions.

d. Respondent who receives an overall score on the VPTS of "D" or below shall be disqualified from consideration for award.

### 5.3 Initial Compliance Screening

TWC will review Responses for initial compliance with the Submission requirements listed in Article IV and for demonstrated ability to meet Section 5.2 Minimum Qualifications (Pass/Fail) required to advance to evaluations. Failure to meet the minimum qualifications will result in the disqualification of the Response.

TWC will automatically disqualify any Response that does not include one or more of the completed and signed (as applicable) documents.

All Responses will be screened for inclusion of all required information prior to release to the evaluation team. TWC may exclude from further consideration for selection any non-responsive Response or portion of a Response.

### 5.4 Response Evaluation

Each member of the evaluation committee will read the Responses in preparation for evaluation. The evaluation committee will score all

Responses that pass initial screening in Section 5.3 Initial Compliance Screening, even if there is only one viable Response. Responses will be scored against the criteria in Section 5.5 Evaluation Criteria.

Responses will be evaluated utilizing aggregated individual scoring outlined in this Article V Evaluation and Award. The individual evaluators' scores will be aggregated and weighted, resulting in the final Response Score, unless TWC requests a Revised Response from those Respondents in the Competitive Range.

### 5.5 Evaluation Criteria

TWC shall consistently evaluate and score Responses in accordance with the following criteria.

a. Cost /Price or Reasonableness of Price, Section 4.8 Form 2 - Cost Response (40%)-Evaluate Proposer's price to provide the goods or services.
b. Past Performance, Qualifications, and Experience, Section 4.8.1, Executive Summary and Section 4.8, Form 3 - References, including Section 4.8.1 Similar Contracts, Section 4.8.2 Contract Performance (including Cancelled Contract References) (15%)- Respondent's past performance, quality, and experience in contracting with TWC, with other state entities, or with private sector entities.
c. Respondents' Technical Approach for Providing the Requested Goods and/or Services, Section 4.6 Required Forms and Submission Documents. (45%).

### 5.6 Competitive Range

The Competitive Range will consist of the Responses that receive the highest scores, or most satisfactory ratings based on the published evaluation criteria and procedures governing this procurement. Cutoff for the Competitive Range will be based on the "natural break" in scores and on reasoned judgment that Responses below the cutoff cannot be made successful through clarification and negotiation. TWC is not obligated to

enforce a natural break in scores and reserves the right to advance as many or as few Responses as qualified under these criteria to achieve the best value for the state of Texas.

### 5.7 Discussions and Revised Responses

After the written Response evaluation, Respondent may be selected for invitation to additional evaluation activities that may include one or more of the following: oral presentations, clarifications, discussions, Proof of Concept, demonstrations, and site visits. Advancement will be determined by the Competitive Range.

A Respondent that does not meet the advancement criteria in this Section will not be invited to participate in additional evaluation activities. The Final Written Response Score will be considered the Total Score, and the Respondent may not be considered further for Contract award.

To further identify the Respondent providing the best value, Respondents selected for additional evaluation activities will be the final group of Respondents eligible for award. Additional evaluation activities will allow for revised points for the Respondent's Final Written Response Score to replace the original technical score. This will be the Final Written Response Score with any adjusted points received, if applicable.

TWC may require additional evaluation activities from any or all Respondents to make a determination for award recommendation. Information from the additional evaluation activities will be used in addition to the scoring of the criteria in Section 5.5 Evaluation Criteria. TWC will provide Respondents with advance notice of any such Additional Evaluation Activities. Advance notice will include an agenda and specific scenarios or use cases for each category or criteria listed in this Section.

## 5.8 Best and Final Offer (BAFO)

A Respondent should provide its best offer in its original Response. Respondents should not expect or assume that TWC will request a Revised Response or a BAFO at any time. TWC reserves the right to request more than one Revised Response from each of the Respondents in the Competitive Range; however, multiple, successive Responses are not envisioned should TWC issue a Request for BAFO as that is intended to be a "best and final offer." A Request for Revised Response or BAFO does not guarantee the Respondent an award or that further negotiations will be conducted.

If a Response is submitted to a Request for a Revised Response or BAFO, the Final Written Response Scores or Total Score (as outlined by Section 5.9 Final Response Score and Total Score) will be revised in accordance with the stated criteria in Section 5.5 Evaluation Criteria as to any changes made to the Respondent's original Response.

The Request for Revised Response or BAFO will allow a Respondent the opportunity to revise its original Response, including pricing. Revisions must be submitted in the manner and form prescribed by the Request. Requests will be sent to the point of contact provided by the Respondent. TWC is not responsible for a Respondent's failure to timely receive or respond to a Request.

If a Request for Revised Response or BAFO is issued by TWC, it will be evaluated by the Evaluation Committee based on the criteria listed in Section 5.5 Evaluation Criteria, rescored, and ranked. The award will then be granted to the Respondent that represents the best value to the State.

## 5.9 Final Response Score and Total Score

A Respondent's Final Response Score is based on the cumulative score of all criteria in Section 5.5 Evaluation Criteria. If a Request for Revised

Response or BAFO is requested, the Final Response Score will be based on the Request for Revised Response or BAFO score, and any previous scores will be archived in the procurement record.

The Final Response Score may not always determine best value or selection for negotiation and award. See Section 5.10 Summary of Best Value Determination for more information.

### 5.10 Summary of Best Value Determination

The final selection for award will be based on best value, as determined by this section. This includes, but is not limited to, any scoring adjustments for outliers, Requests for Revised Offers or BAFOs, Oral Presentations, Site Visits, or other additional considerations as specified by this Solicitation. A Respondent is encouraged to thoroughly review the processes outlined in this Article V, as it documents the best value considerations to be made by TWC in selecting a Respondent for negotiation and Contract award.

If, for any reason, a Contract cannot be executed with a Respondent selected for award within a reasonable timeframe of TWC's determination to seek to contract with that Respondent, TWC may negotiate a Contract with the next highest-scored Respondent or may cancel, withdraw, modify, or partially award this Solicitation.

### 5.11 Public Information Act

Information, documentation, and other materials submitted in connection with this Solicitation or resulting Contract may be subject to public disclosure pursuant to the Texas Public Information Act, Texas Government Code, Chapter 552. See **Attachment 1 – TWC Hotel Terms and Conditions, Section 15 – Public Information Act.**

**TWC may, in its sole discretion (1) disqualify all Respondents that fail to fully comply with the requirements set forth in this section,**

**or (2) offer all Respondents that fail to fully comply with the requirements set forth in this section additional time to comply. Submitting partial or incomplete information that suggests inclusion of confidential information constitutes failure to comply with the requirements set forth in this section.**

### 5.11.1 Responses

If Respondent asserts that information provided in its Response is exempt from disclosure under the Texas Public Information Act, Respondent must mark and submit two separate, searchable Portable Document Format (PDF) copies (Original Response and "Public Information Act Copy," including attachments, of the Original Response) as identified below. **This copy is in addition to the original and all copies otherwise required under the provisions of this Solicitation.**

**a. Mark Original Proposal:**

1. Mark the top of the front page with the words "CONTAINS CONFIDENTIAL INFORMATION" in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger);
2. Mark the bottom of each page that contains information that Respondent claims is exempt from public disclosure with the words "CONTAINS CONFIDENTIAL INFORMATION"; and
3. Identify, adjacent to each portion of the Response that Respondent claims is exempt from public disclosure, the claimed exemption from disclosure. Vague and general claims to confidentiality will not be acceptable.

**NOTE***:* No redactions are to be made in the Original Response.

**b**. **Mark Public Information Act Copy of Response:**

1. Mark the copy at the top of the front page with "Public Information Act Copy" in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger);
2. Each portion Respondent claims is exempt from public disclosure must be redacted (blacked out); and
3. Identify, adjacent to each redaction, the claimed exemption from disclosure. Each identification provided as required by this subsection (b) must be identical to the redactions identified in subsection (a)(3), above. The only difference in required markings and information between the Original Response and the "Public Information Act Copy" of the Response will be redactions, which can only be made in the "Public Information Act Copy." There must be no redactions in the Original Response.

Respondents should not submit a Public Information Act Copy indicating that the entire Response is exempt from disclosure. Merely making a blanket claim that the entire Response is protected from disclosure because it contains any amount of confidential, proprietary, trade secret, or privileged information is not acceptable, and this blanket claim will not be considered by TWC.

A Response should not be marked or asserted as copyrighted material. If Respondent asserts a copyright to any portion of its Response, Respondent agrees to reproduction and posting on public websites by the State of Texas, including all other state agencies, without cost or liability and, additionally, agrees to allow the State of Texas to provide a copy of the Response to individuals making a Public Information Act request for the response.

### 5.11.2 Contract

Within five (5) days from Contract execution, the Successful Respondent must submit a "Public Information Act Copy" of the Original Executed Contract (in addition to the original executed contract) to the TWC contract manager by email. The Public Information Act Copy must meet the following requirements:

a. The copy must be clearly marked as "Public Information Act Copy" on the front page in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger);

b. Each portion Successful Respondent claims is exempt from public disclosure must be redacted (blacked out); and

c. Successful Respondent must identify, adjacent to each redaction, the claimed exemption from disclosure. Each identification provided as required in Subsection (b) of this section must be identical to those set forth in the Original Response as required in Section 5.11.1(a)(2) above. The only difference in required markings and information between the Original Contract and the "Public Information Act Copy" of the contract will be redactions, which can only be included in the "Public Information Act Copy." There must be no redactions in the Original Contract.

# ARTICLE XI GENERAL TERMS AND CONDITIONS

The Terms and Conditions identified in the Solicitation, **Attachment 1 – TWC Hotel Terms and Conditions** are applicable to this Solicitation and any Contract resulting from this Solicitation. TWC reserves the right to

incorporate additional provisions in this Solicitation and any resulting Contract that is in the best interest of TWC.

In the event of a conflict between this Solicitation and applicable laws and regulations, precedence shall be given to the laws and regulations.

### 6.1 Contract Award

TWC intends to award ONE (1) CONTRACT as a result of this Solicitation.

A written notice of Contract Award will be posted on the ESBD and to the TWC Procurement Portal and sent to all Respondents immediately following execution of the Contract(s).

### 6.2 Contract Term

The Contract Term will commence on the fully executed Contract date and expire on September 24, 2027, or October 1, 2027 (depending on which conference dates are selected).

The Contract is contingent upon the continued availability of funding. If funds become unavailable through lack of appropriations, legislative budget cuts, amendment of the General Appropriations Act, TWC consolidation of offices, or any other disruption of current appropriations, Termination provisions of **Attachment 1- TWC Hotel Terms and Conditions** shall apply.

If the resulting Contract does not include a defined option period, the extension is limited to one year.

### 6.3 Price Adjustment

Pricing agreed to in any resulting Contract shall be firm and remain constant based on the price agreed upon at award through the life of the Contract and any exercised optional renewal terms, if applicable.

### 6.4 Contract Amendments

The Contract may be amended only by written agreement signed by both the Successful Respondent and TWC, except in the case of changes in state or federal law.

### 6.5 No Guarantee of Volumes, Usage, or Compensation

TWC makes no guarantee of volume, usage, or total compensation to be paid to a Respondent under an awarded Contract, if any, resulting from this Solicitation.

TWC reserves the right to cancel, make partial award, or decline to award a Contract under this Solicitation at any time, at TWC's sole discretion.

### 6.6 Governmental Entities

If Respondent is responding to this Solicitation in its capacity as a governmental entity, certain Terms and Conditions found in this Solicitation, including exhibits and attachments, may not be applicable. Furthermore, to the extent permitted by law, if a Response is received from a governmental entity, TWC reserves the right to enter into an interagency or interlocal agreement with the governmental entity.

### 6.7 Respondent Waiver – Intellectual Property

**SUBMISSION OF ANY DOCUMENT TO TWC IN RESPONSE TO THIS SOLICITATION CONSTITUTES AN IRREVOCABLE WAIVER AND AGREEMENT BY RESPONDENT TO FULLY INDEMNIFY THE STATE OF TEXAS AND TWC FROM ANY CLAIM OF INFRINGEMENT AGAINST THE STATE OF TEXAS AND TWC REGARDING THE INTELLECTUAL PROPERTY RIGHTS OF RESPONDENT OR ANY THIRD PARTY FOR ANY MATERIALS SUBMITTED TO TWC BY RESPONDENT.**

## 6.8 INSURANCE

For the duration of any Contract resulting from this Solicitation, the Successful Respondent shall acquire insurance, bonds, or both, with financially sound and reputable independent insurers, in the type and amount listed in **Attachment 2 - Insurance Requirements**. **Attachment 2** supersedes all insurance requirements contained within **Attachment 1 – TWC Hotel Terms and Conditions**.

Notwithstanding the preceding, TWC reserves the right to consider reasonable alternative methods of ensuring the Contract in lieu of the insurance policies customarily required. It will be the Respondent's responsibility to recommend to TWC alternative methods of insuring the Contract. Any alternatives proposed by Respondent should be accompanied by a detailed explanation regarding Respondent's inability to obtain the required insurance and/or bonds. TWC shall be the sole and final judge as to the adequacy of any substitute form of insurance coverage.

Failure to maintain insurance coverage or acceptable alternative methods of insurance shall be deemed a breach of Contract.

## 6.9 REMEDIES AND SANCTIONS

### 6.9.1 Assessment of Remedies

Once TWC has determined that Remedies are to be assessed, the Executive Director or Executive Director’s designee shall notify the Successful Respondent of the assessment(s). TWC will withhold Remedies from payments to the Successful Respondent, or, if no payments are to be made, TWC will make demand of payment of Remedies. The Successful Respondent must make payment within thirty (30) days of TWC’s demand. **In the event the Successful Respondent fails to pay within the thirty (30) day period, TWC may make a claim for payment**

**against the performance bond, with or without notice to the Successful Respondent, if applicable.**

### 6.9.2 Failure to Assess Remedies

The failure of TWC to assess Remedies in any instance where TWC is entitled to Remedies under the terms of this Solicitation, or the resulting Contract shall not constitute waiver in any fashion of TWC's rights to assess Remedies.

### 6.9.3 Failure to Notify TWC of a Change of Ownership or Control or Change in Financial Condition

The failure of the Successful Respondent to notify TWC of a change of ownership or control or change in financial condition as required in Sections 6.1.11 Changes in Ownership and 4.12 Change in Financial Condition – Duty to Notify may result in the Successful Respondent being assessed Sanctions in the amount of ONE HUNDRED DOLLARS ($100) per incident.

### 6.9.4 Failure to Comply with Disclosure Requirement

The failure of the Successful Respondent to comply with the disclosure requirement in **Attachment 1 – TWC Hotel Terms and Conditions**, , may result in the Successful Respondent being assessed sanctions in the amount of ONE HUNDRED DOLLARS ($100) per incident.

### 6.9.5 Failure to Produce Records or Information

#### *6.9.5.1 As Part of Background Investigation*

The failure of the Successful Respondent to cooperate with and/or produce records or information as part of a background investigation may result in the Successful Respondent being assessed Remedies in the amount of ONE HUNDRED DOLLARS ($100) per day for each day the records/information are not produced, or answers are not provided.

#### *6.9.5.2 As Part of an Audit*

The failure of the Successful Respondent to cooperate with and/or produce records or information as part of an audit pursuit to **Section 16 of Attachment 1 - TWC Hotel Terms and Conditions** may result in the Successful Respondent being assessed Remedies in the amount of ONE HUNDRED DOLLARS ($100) per day for each day the records/information are not produced, or answers are not provided.

### 6.10 LIQUIDATED DAMAGES

#### *6.10.1 General*

It is agreed by TWC and the Successful Respondent that:

a. If the Successful Respondent does not provide or perform the requirements referred to or listed in this Solicitation or fulfill the obligations of the Contract, damage to TWC will result;

b. establishing the precise measure of damages in the event of default by the Successful Respondent may be (i) costly, (ii) time consuming, or (iii) difficult or impossible to calculate;

c. the liquidated damage assessments contained herein represent a good faith effort to quantify the damages that could reasonably be anticipated at the time of execution of the Contract;

d. the damages set forth herein are just and reasonable;

e. nothing contained in this section shall be construed as relieving the Successful Respondent from performing all Contract requirements whether or not said requirements are set forth herein; and

f. TWC may, therefore, in its sole discretion, deduct damages from the compensation otherwise due to the Successful Respondent. All assessments of damages shall be within the sole discretion of TWC.

g. The Successful Respondent shall perform all services in accordance with the RFP requirements, provisions, terms, and conditions. This remedy is for failure to perform services according to a requirement, provision, term, or condition not covered by another remedy. Subject to the nature and extent of the non-compliance, TWC may assess a ten percent (10%) remedy on each monthly invoice for all services until compliance is achieved.

1) Before this remedy can be applied, TWC must issue a written demand and provide the Successful Respondent a period of thirty (30) calendar days to achieve compliance in most circumstances. TWC, at its sole discretion, may reduce the time period depending on the criticality of the non-compliance.
2) TWC may apply one (1) or more of the remedies in response to non-compliance by the Successful Respondent.
3) In addition to the non-performance remedies above, TWC may elect to exercise its options to include any available remedy at law or in equity, up to and including termination of the Contract.

### 6.10.2 Liquidated Damages Assessment

Once TWC has determined that liquidated damages are to be assessed, TWC shall notify the Successful Respondent of the assessment(s). Upon receipt of written notice, the Successful Respondent will have ten (10) days to provide a written explanation of any justification that may be applicable to the liquidated damages being considered and a corrective action plan for bringing the operations within the standards specified. TWC has the right to amend the corrective action plan submitted by the Successful Respondent. In all cases, the corrective action plan must be approved by TWC in writing prior to implementation. The corrective action plan must be implemented by the Successful Respondent at no cost to and upon approval by the TWC Contract Manager. Liquidated damages will not be assessed during the

specified cure period for the activity in question. If the breach is not cured or the Successful Respondent does not provide a written justification and/or approved corrective action plan, TWC will withhold liquidated damages from payments to the Successful Respondent, or, if no payments have been made, TWC will make demand of payment of liquidated damages. The Successful Respondent must make payment within thirty (30) days of TWC's demand. In the event the Successful Respondent fails to pay within the thirty (30) day period, TWC may utilize the option to withhold any additional payments. Failure to pay assessed liquidated damages within the designated time frame may be deemed by TWC to be a breach of contract.

### 6.11 Changes in Ownership

The Response must include a certification that the entity is not for sale or to become acquired by another business entity during the twelve (12) months following the Response Deadline.

During the term of the Contract or any extension or renewal thereof, the Successful Respondent shall notify TWC in writing of any substantial change in the ownership or control of the Successful Respondent as soon as possible, but no later than thirty (30) days prior to its occurrence.

Successful Respondent must also notify TWC in writing of any change in financial condition as soon as possible, but no later than ten (10) days after its occurrence.

The failure of the Successful Respondent to notify TWC of a change of ownership or control or change in financial condition will be sufficient ground for rejecting the Proposal or terminating the Contract. For the purposes of this section, examples of a substantial change in financial condition are events such as insolvency, bankruptcy or receivership.

### 6.12 SEVERABILITY

If any provision or portion of this Solicitation is illegal, void, or unenforceable, the other provisions will not be affected.

### 6.13 HISTORICAL COMPENSATION

Historical compensation under Contracts for similar goods or services and similar scope and size to this Solicitation has ranged from $50,000.00 to $100,000.00 per fiscal year. TWC reserves the right to adjust any projected amount based on funding during the term of a resulting Contract.

**END OF SOLICITATION**